

HOUSE No. 4120

The Commonwealth of Massachusetts

PRESENTED BY:

Leigh Davis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to declare emergency medical services an essential service.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>1/15/2025</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>11/7/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>6/30/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/17/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>7/10/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>8/16/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>6/30/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>6/10/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>7/1/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>7/16/2025</i>

HOUSE No. 4120

By Representative Davis of Great Barrington, a petition (accompanied by bill, House, No. 4120) of Leigh Davis relative to emergency medical services. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to declare emergency medical services an essential service.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting, after
2 section 2JJJJJ, the following section:-

3 Section 2KKKKKK. (a) For the purposes of section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Commissioner”, the commissioner of public health.

6 “Department”, the department of public health.

7 (b) There shall be established and set up on the books of the commonwealth a separate
8 fund known as the EMS Essential Service Fund, hereinafter referred to as the fund. The purpose
9 of the fund shall be to provide financial support for all types of emergency medical service
10 agencies in the commonwealth. The fund shall be administered by the commissioner.

(c) The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund;

(ii) interest earned on money in the fund; (iii) contributions from private sector entities, including technology firms, foundations and other organizations; and (iv) federal grants and other gifts, grants and donations for the support of emergency medical services. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(d) The secretary shall make expenditures from the fund including, but not limited to, the following purposes: (i) operational costs, including equipment, vehicles and personnel salaries; (ii) training and certification programs for emergency medical service personnel; (iii) investments in underserved or high-need areas to address disparities in service availability; and (iv) incentives and technical assistance for emergency and medical service agencies that adopt shared services models, including joint training programs and coordinated dispatch systems.

(e) All emergency medical service agencies receiving funding shall be subject to regular audits to ensure compliance with state standards and effective use of resources.

(f) The department shall annually, not later than December 31, report on the activity of the fund to the: (i) chairs of the joint committee on public health; (ii) chairs of the joint committee on health care financing; (iii) chairs of the house and senate committees on ways and means; and (iv) clerks of the house of representatives and senate.

SECTION 2. Chapter 111C of the General Laws is hereby amended by adding the following section:-

Section 26. (a) For the purposes of section, the term “office” shall mean the office of emergency medical services under the bureau of health care safety and quality within the department.

(b) Emergency medical services shall be designated as an essential service in the Commonwealth. Emergency medical service agencies shall be prioritized in state and local planning, funding and resource allocation efforts to ensure adequate coverage and quality of care in the commonwealth.

(c) The office shall develop and publish statewide standards to ensure consistent delivery of high-quality emergency medical services. The standards shall include, but not be limited to: (i) response time benchmarks tailored to urban, suburban and rural areas in the commonwealth; (ii) training and certification requirements for emergency medical service personnel; and (iii) guidelines for the equitable allocation of funding and resources.

(d) The office shall collaborate with regional and local emergency medical service agencies to identify service gaps and implement measures to address disparities in emergency medical service availability and quality.

(e) The office shall encourage and support regionalization efforts among emergency medical service agencies to improve efficiency and resource utilization.

(f) The EMS Essential Service Fund established by section 2KKKKKK of chapter 29 shall provide funding for this section.

(g)(1) The office shall establish an advisory committee to guide emergency medical services development and implementation in the commonwealth. The advisory committee shall

53 consist of: (i) the commissioner of the department or their designee; who shall be chair; (ii) 2
54 members appointed by the commissioner, who shall both be emergency medical service
55 professionals; (iii) 1 member appointed by the commissioner, who shall be a municipal
56 representative who specializes in emergency medical services; and (iv) 1 member appointed by
57 the commissioner, who shall be an expert in public health.

58 (2) The advisory committee shall meet at least quarterly to review progress and
59 recommend strategies for improving emergency medical services in the commonwealth.

60 (h) All emergency medical service agencies receiving funding shall be subject to regular
61 audits to ensure compliance with state standards and effective use of resources.

62 (i) The office, in consultation with the department, shall prepare an annual report that
63 shall include: (i) the status of emergency medical services, including funding needs and
64 workforce challenges; (ii) an evaluation of the effectiveness in improving access to emergency
65 medical service care; (iii) analysis of cost savings and financial sustainability; (iv) collected data
66 from emergency medical service agencies; and (v) any recommendations for expansion of
67 emergency medical services. The annual report shall be submitted, not later than December 31 of
68 each year, to the governor, the chairs of the joint committee on public health, the chairs of the
69 joint committee on health care financing and the clerks of the house of representatives and
70 senate.